# Discrimination case against the State of Queensland (Queensland Police Service)

Case plan and draft complaint. Second version, 11 November 2026. For discussion with your lawyers before anything is lodged. Not for service.

## 1. What changed in this version

1. **The dog is back in the case as a claim.** You told me you reported the taking of the dog on 1 December 2024 and were told it was civil. Your own filed account says exactly that, and five other documents support it. The first version was wrong to drop it.
2. **The burden of proof stays on you.** The first version said facts pointing to discrimination shift the burden to police. That rule is in the Act but a later section switches it off for complaints like yours. Police carry the burden only on whether the one-day deadline was reasonable.
3. **The dog was bought in December 2023,** not October 2024 as your notes say. Your bank records show $3,150 on 10 December 2023 and $350 on 11 December 2023.
4. **Your own messages of 16 to 19 December 2024 are the main risk to the dog claim.** They are set out in section 5.

## 2. What this is built on

Read for this version, in addition to the first: your account of the night of 1 to 2 December 2024 (an exhibit to your affidavit sworn 31 July 2025 and filed in the Magistrates Court at Southport on 4 August 2025); the CCTV stills in the same papers; your former partner's police statement dated 2 December 2024; the message exports for December 2024 to February 2025; the two Policelink emails of 4 April 2025 and your email of 17 April 2025; your purchase and registration papers; the building manager's declaration, paragraphs 14 to 18.

Three warnings. The camera transcripts are machine-made and the speaker labels are not reliable. Your account of the night is undated and unsigned, although it is exhibited to a sworn affidavit. One December message is quoted from an export that does not label who sent it.

Still not found: any police record or phone record of your report that night; what you typed into the online report of 4 April 2025; the transfer form and the pedigree letter of 6 January 2025; the date the council first registered the dog in your name; your friend's declaration (the prosecution holds it); the order made in August 2025; your Human Rights Commission complaint and its report.

## 3. The theory in one sentence

The same police service gave opposite answers to the same dispute depending on which of you was complaining: when she had the dog and you complained it was civil, and when you had the dog and she complained it was a crime.

## 4. The night of 1 to 2 December 2024

This night is the comparison the case rests on.

| Time | What happened | Source |
|---|---|---|
| About 7:30 pm | She reports to police at another address | Police notice |
| About 8:00 pm | You message the building manager that you fear she will enter with friends | Manager's declaration, para 14 |
| 8:30 pm | Police issue the notice. Only condition: good behaviour. Your version is taken by phone. It records you saying "some of the animals are under his name and the other animals are under the Agg name" | Police notice |

| Time | What happened | Source |
|---|---|---|
| About 11:05 pm | People you do not know enter the unit. You are pushed, your ankle is injured, the dog is taken. You call triple zero | Your filed account; CCTV stills stamped from about 11 pm; ankle photo |
| About 11:15 pm | Police arrive. You say you were assaulted and the dog was taken, and offer ownership documents | Your filed account; CCTV stills of officers in the lobby; manager's declaration, para 17 |
| About 12:05 am | You go with officers to the police station. She, her friends and the dog are in another part of the station. You show your folder and ask for charges. Officers say to "let it go" and that the dog's ownership "was a civil issue and that they would not intervene" | Your filed account |
| After that | You are given the notice. You agree she may collect belongings with police. An officer says she "would only be collecting 'uncontested personal items'" | Your filed account |
| 1:20 am | She leaves with officers carrying her bags. The dog stays with her | Your filed account; CCTV still stamped 01:20 |
| 2 December | A Southport constable takes a signed statement from her alleging you took over $2,900 from her wallet. She calls the unit "the apartment I share with Cory" | Her police statement, same job number as the notice |

Support for "civil" outside your own account:

- 24 February 2025, police camera: a speaker who appears to be your friend tells officers "he went to the police station they said it's a civil matter".
- 24 February 2025, police camera: your mother tells an officer "the first time the police were actually down ... back in december ... the police came in there" and that one of the women said "I'll try and get Corey charged about the animals".
- 26 December 2024, your message to her: "I couldn't even do a statement against you or your friends".
- 4 April 2025, Policelink, first email: your details did "not match our records". Second email, the same afternoon: "this matter has already been reported to Police with advice provided".
- 17 April 2025, your email to Policelink: "The Initial police report I filed regarding my dog on the 01/12/24 were previously rejected".
- A 2025 police report number, QP2500652108, heads your account. Its outcome is not on file.

Against it: your message of 9 December 2024, "I havnt even pressed charges". Police will read that as your choice. Your account is that you asked and were refused.

## 5. The transfer, 16 to 19 December 2024

What the messages show (day, sender, words):

- 6 December, you: "Please return with all the animals".
- 9 December, her: "Romeo is mine and all the animals".
- 16 December, her: "You should bring me the folder so I can put the animals at mi name as you said you would do". You: "I want to put them in your name btw to show you can trust me".
- 17 December, her: "I just need the paper and then you need to approve the change online". You send her the login.
- 17 to 18 December, a message with no sender label that reads as yours: "I promise I won't take the animals from you. ... They are all in your name now, and you have my signature on Romeo's documents."
- 19 December, her: "Yes I called and I just need to post iy". You: "I signed it because your happiness means everything to me."
- 4 February 2025, you: "I also have every legal right to still contest ownership even if in your name."

What this means. Three things you told me are supported: she had the dog when you signed, she asked for the papers, and she posted them. One is not: "forced". Your own words that week describe a gift made to show trust, with a promise not to take the animals. Your notes credit "all in your name now" to her. It reads as yours. Your May 2025 email to the New South Wales register, "I did not send or submit any paperwork to change Romeo's ownership", will be called misleading unless you add that you signed and gave her the login.

The line that is true and holds: you signed while she had the dog; the register she used has written that it "doesn't have any authority on the pet now" because the dog lives in Queensland; and no court has decided who owns the dog.

The paper police held on 22 March 2025 is not settled. Her statement refers to a pedigree letter dated 6 January 2025. Your papers show the New South Wales register record "updated on 10 Apr 2025", nineteen days after the seizure, with your note that you did not make that change.

Your proof of ownership: the two payments in December 2023 (the second carries the reference "Cory Alexia Pom"); a vet invoice of 16 July 2024 naming you as the client; council registration in your name, current to 31 August 2025, with no first-registered date shown.

## 6. The claims

You must prove each claim on the balance of probabilities. A discrimination claim needs three things: you were treated worse than a person without the attribute was or would have been; the situations were not materially different; and the attribute was a substantial reason.

### Claim C: sex. The dog

The treatment:

1. 2 December 2024. Police declined to act on your complaint of assault and the taking of the dog, called it civil, and took no statement. The same day police took her complaint about money by signed statement, and escorted her to collect belongings.
2. 22 March 2025. Police took the dog from you. On camera: "it's been stated that the dog was taken in a [DV] breach. So regardless of what paperwork he has, we've got to seize the dog and then he's got to go through the courts to get the dog back"; "It's my dog." "It doesn't matter"; "It would have been civil if you didn't get charged for stealing it". Police then gave the dog to her without a court order.

The comparison is a real one: a woman, in the same dispute, over the same dog, with the same police service. "Civil" means police leave the dog where it is and the person without it goes to court. Police applied that rule when she had the dog. They reversed it when you had the dog. Both times the man was the one told to go to court.

Why the reason given does not explain it: the officer said the paperwork did not matter. The reason given was her allegation and the charge. Your allegation in December, made with documents in your hand, did not get a statement taken.

The weak joints:

- Your December messages (section 5). Police will say that by February the dog was hers by your own signature and promise, so the two situations were different.
- The charge. Police will say the February entry made it criminal. That stands or falls with the criminal case. The prosecution has already proposed replacing the stealing-based charge.
- Proof. What was said at the station rests on your account until the police record of that night is obtained.

### Claim A: sex. Exclusion from the home on 24 February 2025

What police knew, in their own words and documents:

1. The order of 3 December 2024 had two conditions: good behaviour, and that you "must on or before 01/01/2025 allow the aggrieved to enter the premises ... in the company of a police officer to recover undisputed personal property". It had no condition keeping you out.

2 On camera at about 2:08 to 2:19 am: "technically you can be here"; "technically he's allowed to be here"; "technically he's not breaching the DVO by being here ... there's nothing on that order that's saying he can't be here".

3 At about 2:28 am the building manager told the attending officer both names were on the lease and "as far as I'm concerned, they're both allowed to be there".

4 At about 2:23 am an officer asked her friend "would you want any support services or referral services?" No welfare inquiry was made of you.

5 At about 2:35 am you were arrested and removed. Her friend stayed.

6 At about 5:20 am an officer told the building manager to reinstate the access fobs "because cory's not the leaseholder". The manager answered that the change "was not accepted by the property manager". The officer said: "you're inconveniencing a domestic violence victim survivor who's been put through a lot by her partner".

7 That evening an officer told your mother you had "essentially terrorized a female person" and "we have to defer to the judgment of our other police that have made that call".

8 On 25 February 2025 the court recorded: "APPLICATION IS WITHDRAWN, TPO VACATED."

The December night adds a second comparison. On 2 December 2024 police escorted her into the unit to collect belongings. On 24 February 2025 police removed you from it and restored access for a woman who was on neither the lease nor the order.

Why this is a claim: the reason given to the building manager was contrary to what the manager had told police three hours earlier and told them again on the same call. A stated reason shown to be untrue lets a tribunal look for the real one.

The weak joint: police will say you were removed because you were arrested, and a woman arrested on the same allegations would have been removed too. If the remaining charges end in your favour, the arrest stops explaining the exclusion. If they do not, this claim fails.

### Claim B: impairment. How the complaint was handled in 2026

1 The police notice of 1 December 2024 records that you have "a mental illness and requires medication". The diagnosis email is dated 24 October 2024.

2 On 18 June 2026 Ethical Standards asked for the court matter, the date, the charge and the officers' names by close of business the next day.

3 On 10 September 2026 the matter was finalised without contact. The outcome names no right and does not mention your condition.

This is a claim that a requirement was imposed that a person with your condition could not meet and that was not reasonable. Police must prove it was reasonable. It is inside the one-year limit and does not overlap the court case. It works only if your condition is why the one-day deadline could not be met. If you answered in time, drop the deadline and run this part under the Human Rights Act alone.

### Evidence that supports the claims but is not a claim on its own

- The notice of 1 December 2024 records, as a ground, that your illness "can cause the resp to act crazy and go into rages without warning".
- 4 April 2025: your break-and-enter report was declined in writing.
- Your family member's statement that officers called you a "criminal" and a "compulsive liar". It has no date or witnessing clause in the copy found.

## 7. What police will say, and the reply

- **"Everything followed from the notice, not from his sex."** This is their best answer. Reply: the notice had one condition, good behaviour. It did not give her the dog, did not keep you out of the home, and did not stop police taking your statement.

- **"She took the animals because he said he would take cats to a shelter."** Reply: your message was about two foster cats, not the dog, and that is not what police said on the night. They said civil.
- **"By February the dog was hers on paper."** Reply: the officer said the paperwork did not matter; the register has no authority over a dog living in Queensland; no court has decided who owns it.
- **"He was arrested."** Reply: the arrest followed on-camera statements that you were allowed to be there and a manager's confirmation of the lease. Hold this until the court case ends.
- **"Her friend made a cross-complaint in December too, and nobody was charged."** Reply: her complaint about money got a signed statement the next day. Yours got none.
- **"It is out of time."** Reply: see section 10.
- **"He has complained about this already."** Reply: the earlier complaint ran under the Human Rights Act and ended unresolved with no recommendation.

## 8. What has to be fixed before lodging

1. The transfer. One account that matches the messages in section 5. Not "forced". Not "I did not submit any paperwork" on its own.
2. Which station you went to that night. Your account says Southport. Your July 2025 complaint lists Robina.
3. How many people came in. Your account says two entered with others behind. Your message of 9 December says "5 of your friends". Settle it from the CCTV.
4. What you asked for at the station, against "I havnt even pressed charges".
5. Her friend. "Never met" and "never even seen her" against your account that she was one of the two who came in on 1 December. The line that fits everything: you had seen her once, that night, and did not know her name.
6. The time of entry against the time of the Policelink call on 23 February. Your notes give three versions.
7. Your bail conditions from 24 February 2025. If they kept you from the unit, say so, because police will.
8. The lodging date and wording of your earlier Human Rights Commission complaint. It decides the time argument.
9. Whether you answered the 18 June 2026 request, and when.
10. Each camera line checked against the footage, with camera and clock time.
11. Two date points. In your filed affidavit a message dated "12/9/24" is described as September 2024; it is 9 December 2024. One of your file names dates the seizure receipt 26 March; the receipt itself says 22 March 2025.

Your lawyers should read your account of the night and the December messages side by side before either is used anywhere. The same documents matter in the criminal case.

## 9. Records to get first

1. From police, by a right to information request, for the night of 1 to 2 December 2024: the triple-zero recordings (yours and the other caller's), the job log, the officers' notes and camera footage, and the station record of who attended. Also: the outcome of your report QP2500652108; what you submitted online on 4 April 2025 (case 11450236) and the "advice provided" it refers to; and the recording of your call of 23 February 2025.
2. From your phone company: call records for 1 and 2 December 2024. The bills on file stop at 8 November 2024 and start again at 3 March 2025.
3. From the building manager: the original CCTV files. His declaration says the footage was downloaded.
4. From the New South Wales register: the change history for the microchip, including 10 April 2025.
5. From the council: the date the dog was first registered in your name.

6 From the court: the order and the recording of the August 2025 hearing.

Item 1 decides how strong Claim C is.

## 10. Route, timing and remedies

**Route.** One complaint to the Queensland Human Rights Commission under the Anti-Discrimination Act (sections 7(a) and (h), 8, 10, 11 and 101), with a Human Rights Act complaint about the outcome letter. Section 101 covers any police function. Section 8 covers assumptions made about a group, which is how assumptions about men in domestic disputes come in. The State answers for its officers. If conciliation fails you can require referral to the tribunal. Each side usually pays its own costs. The tribunal can adopt what the criminal court finds.

**Why not the federal route.** It covers "services" only, which does not fit a seizure, an exclusion or an arrest. Using both routes lets police argue that one bars the other. The federal two-year marks (2 December 2026, 24 February 2027, 22 March 2027) can pass.

**Time.** Claim B is in time until 18 June 2027. Claims A and C are out of time and need good cause. The good cause is: a criminal case on the same events is still running; your health; you took the same events to the same Commission earlier; and nothing is lost to police because the footage exists and you asked for it to be kept. In-time and out-of-time acts can go in one complaint. The Commission may put Claims A and C on hold while the court case runs. That costs nothing.

**When.** After 6 January 2027, when the Human Rights Act complaint about the outcome becomes available, and after your lawyers have read it. Earlier if the criminal case ends first.

**What the tribunal will not decide.** Who owns the dog. Only a property claim does that. The family-law time limit for a property claim runs two years from the end of the relationship and may fall this month. Raise it with your lawyers now.

**What to ask for.** A written acknowledgment that you were named on the lease, that the order did not exclude you, and that you reported the taking of the dog on 1 December 2024; correction of the police record; reassessment of your complaint by an officer outside Ethical Standards and Southport, with reasonable time to respond; an apology; compensation.

**Odds, as my judgement.**

| Claim | Now | If things go your way |
|---|---|---|
| C, the dog | About one in five | About one in three, if the police record of the night confirms your report and the stealing-based charge ends in your favour |
| A, the home | About one in six | About one in three, if the remaining charges end in your favour |
| B, the complaint | About one in three | Only if the deadline fact holds |
| Some outcome at conciliation | About two in five | |

Claim A is lower than in the first version because of the burden-of-proof correction.

## 11. Draft complaint (for your lawyers to settle)

**Respondent:** State of Queensland (Queensland Police Service).

**Attributes:** sex (male); impairment (major depressive disorder, diagnosed 24 October 2024).

**Area:** performance of functions and exercise of powers under State law.

*The night of 1 to 2 December 2024*

1 On 1 December 2024 at 8:30 pm police issued a protection notice naming me as respondent. Its only condition was good behaviour. Police took my version by telephone. The notice records that I have a mental illness.

2 At about 11:05 pm that night people I did not know entered my home, Unit 104, 158 Scarborough Street, Southport. I was pushed, my ankle was injured and my dog was taken. I called triple zero.

3 Police arrived at about 11:15 pm. I told them I had been assaulted and my dog had been taken. I offered documents showing the dog was mine.

4 At about 12:05 am on 2 December 2024 I went with officers to the police station. My former partner, her friends and my dog were in another part of the station. I showed officers my documents and asked that the people who had entered be charged. Officers told me to "let it go" and that who owned the dog was a civil matter in which they would not intervene. No statement was taken from me. [Settle which station.]

5 Police then escorted my former partner to the unit to collect belongings. An officer told me she would collect only uncontested personal items. She left at about 1:20 am with officers carrying her bags. The dog remained with her.

6 On 2 December 2024 an officer at Southport took a signed statement from my former partner alleging that I had taken money from her.

*The order and the transfer*

7 On 3 December 2024 the Magistrates Court made a temporary order by consent without admissions. It required good behaviour and required me to allow the aggrieved to enter Unit 104 by 1 January 2025 with police to collect undisputed property. It did not exclude me from the unit and said nothing about the dog.

8 Between 17 and 19 December 2024, while the dog was with my former partner, I signed a change-of-owner form at her request and she posted it. The New South Wales Pet Registry has since written that it has no authority over a pet living in Queensland. [Settle the wording against your messages of 16 to 19 December 2024.]

9 I was named on the lease of Unit 104.

*The home, 24 February 2025*

10 In the early hours of 24 February 2025 police attended Unit 104. Police footage records an officer saying I was "technically ... allowed to be here" and that there was "nothing on that order that's saying he can't be here".

11 At about 2:28 am the building manager told an officer by telephone that both names were on the lease and that both of us were allowed to be there.

12 An officer offered support services to a woman staying in the unit. She was not named on the lease or in the order. No welfare inquiry was made of me.

13 At about 2:35 am I was arrested and removed. The woman remained.

14 At about 5:20 am an officer told the building manager to reinstate access fobs for the aggrieved and her friend "because cory's not the leaseholder", and described the aggrieved as "a domestic violence victim survivor who's been put through a lot by her partner". The manager told the officer the change to the lease had not been accepted.

15 On 25 February 2025 the application was withdrawn and the order vacated.

*The dog, 22 March 2025*

16 On 22 March 2025 police took the dog from me in Southport. Police footage records an officer saying "regardless of what paperwork he has, we've got to seize the dog and then he's got to go through the courts to get the dog back". I said "It's my dog". An officer answered "It doesn't matter". An officer said "It would have been civil if you didn't get charged for stealing it".

17 Police gave the dog to my former partner. No court had decided who owned it.

18 On 4 April 2025 Policelink wrote that my details did "not match our records". The same afternoon it declined my report because "this matter has already been reported to Police with advice provided".

*What I say*

19 In December 2024, when a woman had my dog and I complained, police said it was civil and left the dog with her. In March 2025, when I had the dog and she complained, police took it from me and gave it to her. In December 2024 police escorted her into the unit. In February 2025 police removed me from it and restored access for a woman who was not on the lease or in the order.

20 I say I was treated less favourably than a woman in the same circumstances was treated, and that my sex, or assumptions made about men in domestic disputes, was a substantial reason.

*The complaint handling, 2026*

21 On 18 June 2026 Ethical Standards Command required particulars of my complaint by close of business the next day. On 10 September 2026 it finalised the complaint without contacting me. Its outcome does not refer to my condition.

22 [Keep only if true.] I say the one-day requirement was one I could not meet because of my impairment and was not reasonable.

23 Some of these events are more than one year old. I ask the Commissioner to accept them because a criminal proceeding about the same events is still before the court, because of my health, and because I raised the same events with the Commission in complaint EDR19098.

## 12. What stays out

The six-hour wait on 23 February. The earlier complaints about Southport station. March 2026, until there is a document describing what happened. Anything about what you did on 23 February, including how the dog came to be with you. The words "forced" and "not valid" about the transfer. Any description of the officers' motives. Officers' names.